



DECISION

POS/3116/2024/KC/R

Complaint No.:

**Name and address
of the complainant :**

Mst. Shazia Zakir R/o. House No. B-19, M.Y Plaza, Near Chawla
Market Nazimabad No. 04, Karachi.

**Name of the Agency
Complained against :**

Directorate of Inspection & Registration of Private
Institutions Sindh (DIRPIS), School Education & Literacy
Department, Government of Sindh

**Name & Designation of
Investigating Officer :**

Mr. Masood Ishrat
Registrar

Subject :-

ALLEGED INACTION BY DIRPIS ON REPRESENTATIONS
REGARDING NON-PAYMENT OF GRATUITY AND OTHER DUES BY
BAHRIA FOUNDATION SECONDARY SCHOOL / COLLEGE,
NAZIMABAD, KARACHI.

THE COMPLAINT

Mst. Shazia Zakir, filed the instant complaint on 02.07.2024 against Directorate of Inspection & Registration of Private Institutions Sindh (DIRPIS), alleging inaction on her representations made against the management of Bahria Foundation Secondary School/College, Nazimabad, regarding non-payment of gratuity and other dues. She stated that she served the said institution from 2001 till her resignation on 13.03.2022, effective up to 13.04.2022. She alleged that despite completion of her notice period, the management failed to clear her gratuity, leave encashment and other dues. She further denied submission of any Master's Degree and stated that allegations of forged degree are baseless.

PROCEEDINGS

2. The complaint was admitted u/s 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991, and initially investigated at Regional Office, Karachi Central and subsequently assigned to Registrar. The matter was taken up with the Directorate of Inspection & Registration of Private Institutions Sindh (DIRPIS).

3. In response, the Principal, Bahria Foundation College, Nazimabad Campus, vide letter dated 31.07.2024 submitted that the complainant joined as teacher on Graduate Degree in September 2001. It was further reported that in year 2017, she was appointed as Coordinator, for which Master's Degree was an essential requirement, and she submitted a Master's Degree in English Literature. It was also reported that on 13.04.2022, the complainant herself submitted updated CV duly signed by her, wherein she claimed qualification as "B.Com and M.A (English Literature)".

4. It was further reported that degree verification of staff was initiated as per higher authorities' directives and during verification, the Master's Degree of the complainant was verified from University of Karachi and was found fictitious/forged. It was stated that she was repeatedly asked to appear with original documents but she avoided personal appearance. An inquiry committee was constituted and notices were issued to her; however, she failed to appear. Consequently, the inquiry committee recommended recovery of excess salary drawn on the basis of fake qualification and also recommended legal action.

5. The management further stated that Bahria Foundation is a charitable trust established under Charitable Endowments Act, 1890 and functioning under Pakistan Navy, and therefore, the Ombudsman has no jurisdiction under Section 9(1)(c) of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991. The management requested that the complainant may be directed to approach the competent forum.

6. The complainant in her rejoinders dated 07.10.2024, 23.02.2025, 21.05.2025 and 30.09.2025 denied the allegations and reiterated that she never submitted such degree and her promotions were based on seniority and performance. She demanded release of gratuity and dues amounting to approximately PKR 869,378/-.

HEARINGS

7. To resolve the controversy, multiple hearings were held. During hearing dated 18.09.2025, Mr. Muhammad Amir Ansari, Director, DIRPIS, along with the Principal of Bahria Foundation College, Nazimabad Campus, and the complainant participated. The Principal reiterated that the matter regarding verification of complainant's qualification had been referred to the competent authority and an internal inquiry was being conducted. The complainant, however, maintained her stance that she never submitted the alleged Master's Degree and that her dues were being withheld unlawfully. After discussion, the complainant was advised to submit her written response before the Inquiry Committee of Bahria Foundation College, so that the matter may be finalized at their end.

8. During subsequent hearing dated 25.11.2025, the representative of Bahria Foundation College contended that the complainant had misrepresented her academic qualification and obtained undue benefits, therefore, her case could not be processed as a matter of right. It was further stated that if the complainant tenders an apology and submits a request for sympathetic consideration, her case may be considered by the competent authority. The complainant was accordingly advised to consider the said proposal and convey her position. However, she did not submit any such apology/request and continued to insist upon release of full dues.

FINDINGS

9. I have carefully examined the record, written replies, rejoinders, hearing proceedings, and arguments advanced by the parties and have noted that:

- a) At the very outset objection of jurisdiction raised by Bahria Foundation, the same appears misconceived. The complaint is primarily against DIRPIS for inaction, and also relates to alleged maladministration in non-redressal of grievances by a private educational institution functioning in Sindh. The Bahria Foundation School/College is registered under the Sindh Private Educational Institutions (Regulation & Control) Ordinance, 2001 (Amended Act 2003) and Rules framed thereunder. Therefore, the plea of absolute immunity from oversight is not sustainable at this stage, particularly when the matter involves denial of statutory benefits and alleged maladministration.
- b) The record reveals that the complainant remained in service of Bahria Foundation Secondary School / College for about two decades and resigned w.e.f. 13.04.2022.
- c) The core issue in the matter is the complainant's entitlement of gratuity/dues, which has been withheld by the institution due to allegations of submission of forged Master's Degree, on the basis of which the complainant allegedly obtained appointment/promotion and financial benefits.

- d) The management has placed on record documentary material including complainant's updated CV, duly signed by her, reflecting qualification as "M.A (English Literature)". It is further evident from record that the said Master's Degree was sent for verification and the University of Karachi declared it fictitious/forged.
- e) In her complaint as well as rejoinder, the complainant denied submission of such degree. However, the record reflects otherwise. It is, therefore, an admitted/established fact that the complainant has misrepresented and concealed material facts while approaching this forum.
- f) It is a settled principle that a complainant seeking equitable relief must approach the forum with clean hands. A person who suppresses material facts or misleads the forum is not entitled to discretionary relief. The complainant, by denying her own written and signed record, has not only attempted to mislead the department but has also abused the process of this office.
- g) Furthermore, the matter involves disputed questions of fact relating to authenticity of educational documents, alleged fraud, and consequential recovery/adjustment of financial benefits, which requires detailed evidence and adjudication, and the appropriate remedy lies before the competent legal forum.
- h) The role of DIRPIS is regulatory in nature. However, DIRPIS cannot compel settlement of dues where the employer has raised serious allegations of fraud supported by verification record, and where the complainant herself has misrepresented material facts.

DECISION

10. In view of the above, the complaint is found to be without merit and is hereby disposed of. However, the complainant is at liberty to approach the competent forum/court for redressal of her grievance, if so desire.

Given under the hand and seal of office.



Sd /-

(MUHAMMAD SOHAIL RAJPUT)

Sitara-e-Imtiaz, PAS

Ombudsman, Sindh

Karachi, the 05th March, 2026